

is doing until it passes; she has persistent hip and back pain and needs to move around every 30 minutes; she tires easily and cannot drive for long periods; she experiences abdominal pain and has urgent bathroom needs, particularly when she is under stress; when she is watched and questioned, she experiences a racing heart and changes in breathing that affect her ability to understand and answer questions accurately; and her doctors have warned her to avoid stress. (Decl. of Linda Harrod ["Harrod Decl."] at ¶¶ 4, 8-14.) Based on this, she asks the Court to issue a protective order that her deposition be taken remotely from a private location with the following conditions: she be visible on camera at all times that she is on the record; everyone present at her location is identified on the record; she cannot communicate with anyone or review any documents or materials other than a marked exhibit while a question is pending; she will be questioned for 30 minutes, followed by a 20 minute break, with the breaks not being counted against the time limit set forth in C.C.P. § 2025.290; and she will be given additional breaks if necessary. (See, Notice of Motion.)

In response, Plaintiff argues that it noticed, and is entitled to take Harrod's deposition in person, and agrees to provide the following accommodations (the same that were provided in the Elam Action): the attendance of a registered nurse to keep Harrod's vital signs, with Harrod paying for this cost; 10 minute breaks after every 30 minutes of testimony; and suspending the deposition for 30 minutes if Harrod experiences shortness of breath, faintness, or high or low blood pressure, continuing only once the symptoms decrease. (Decl. of Karen S. Spicker ["Spicker Decl."] at ¶¶ 3, 5, 12-15, Exs. 1-2.)

Harrod presents no evidence showing that her health conditions and related symptoms cannot be adequately addressed by the accommodations proposed by Plaintiff. The accommodations offered by Plaintiff, at their own cost, are not small measures, but in this case warranted and dispositive. Having a registered nurse attend the deposition and keep track of Harrod's vital signs, with the understanding that if she experiences shortness of breath or high/low blood pressure the deposition will be temporarily suspended until the symptoms are reduced, addresses Harrod's concerns about the stress of questioning causing a racing heart and/or changes in breathing [Harrod Decl. at ¶¶ 8, 12-13]. A 10-minute break after every 30 minutes of testimony should be sufficient to allow Plaintiff to move around and reduce any pain from sitting while testifying for 30 minutes [Harrod Decl. at ¶ 9], without causing too much disruption and delay in the deposition. Harrod's need for a bathroom and concerns about "being watched and questioned" [Harrod Decl. at ¶¶ 11-12] will be the same whether she is in-person or remote, so they do not provide sufficient good cause for a remote deposition. Additionally, as the deposition location is 20 minutes from her home, the fact that Harrod "tires easily" and cannot drive for long periods" [Harrod Decl. at ¶ 10] also do not present good cause for a remote deposition.

Accordingly, the motion is denied based on the express terms of the accommodations that will be provided and adherence to all of them shall be strict.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503717	ARIAS VS MURO	MOTION TO COMPEL COMPLIANCE AND FURTHER RESPONSES TO REQUESTS FOR PRODUCTION TO DEFENDANT MURO, SETS ONE AND TWO, AND REQUEST FOR SANCTIONS BY OSCAR ARIAS

Tentative Ruling: Hearing continued to December 3rd 2026 at 8:30 a.m. pending current stay as to individual Defendant Emilio Muro that went into effect on 8/21/16.

No further briefing will be permitted.

6.

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Tentative Ruling: Granted.

The entire injunction is prohibitory in nature as it seeks to maintain the status quo regarding the operation of Dental Corp. Plaintiff shows a probability of success on the merits and the balancing of hardships favors Plaintiff. Muro Dental is required to return patients, opportunities, and assets belonging to Dental Corp.

Moving party to provide notice pursuant to CCP 1019.5.

This is a business dispute. On 5/16/2025, Oscar Arias ("Plaintiff") filed a complaint against Emilio Muor ("Muro"), Monica Capel ("Capel"), and Muro Dental Corporation ("Muro Dental") asserting the following causes of action: (1) breach of contract; (2) breach of fiduciary duty; (3) conversion; (4) fraudulent transfers; (5) violations of California Corporations Code § 1601 and 1602; (6) constructive trust/accounting; and (7) dissolution of corporation.

The complaint states that on 11/25/2013, Plaintiff and Muro established a dental practice by incorporating Arias Muro Dental Corporation (a nominal defendant here, "Dental Corp."). (Complaint, ¶ 15.) Plaintiff and Muro agreed to share equally in all profits, management, and decision making, being the sole shareholders with each owning 50% of Dental Corp. (*Id.* at ¶ 16.) The complaint further alleges that on 10/24/2024, Muro filed a revised statement of information for Dental Corp removing Plaintiff from the roles previously listed, with Capel replacing Plaintiff as Secretary and Plaintiff being removed from the board. (*Id.* at ¶ 19.) Generally, the complaint goes on to allege that Muro and Capel have taken over Dental Corp, transferring all assets and clients to Muro's own corporation, Muro Dental.

On 7/21/2026, the court granted Plaintiff's unopposed ex parte seeking appointment of a receiver, issuing a temporary restraining order ("TRO"), and setting a hearing to show cause re: confirmation of the receiver appointment. The court set that hearing for 8/6/2026.

On 8/5/2026, Plaintiff filed another ex parte seeking a TRO and a hearing to show cause re: preliminary injunction.

In the instant motion, the court granted the ex parte motion for the TRO and set the OSC re: preliminary injunction for 8/31/26. The docket reflects the court vacated the OSC re: confirmation of receiver appointment, giving the reason, "Preliminary Injunction Expired." A notice of ruling filed by Plaintiff on 8/6/2026 notes that there being no opposition, the court confirmed the appointment of the receiver on the terms of the 7/21/2026 order.

Now, Plaintiff moves for a preliminary injunction prohibiting Muro Dental from the following: (1) making payments to Muro Dental or any third party without Receiver Stephen J. Donnell of FedReceiver, Inc.'s (the "Receiver") express approval; (2) transferring and/or disposing of any property or assets owned by Dental Corp, other than in the ordinary course of business consistent